PEMBERTON ROWE LLP
40 Gracechurch Street, London EC3V 0BT

Whitfield Carter LLP — For the attention of Mr James Osei

Our ref: AW/HARB/0091 Your ref: SW/JO/CASP-204 13 November 2025

Dear Sirs

Caspian Technologies Limited v Harburn Utilities plc — Response to letter before claim

We act for Harburn Utilities plc and reply to your letter before claim dated 16 October 2025.

Liability is denied. Our client terminated the Agreement because the CarbonLedger platform was not fit for purpose and gave rise to recurring data-integrity failures that compromised our client's regulatory reporting from early 2025 onwards. These failures were raised with your client repeatedly and were not resolved. They were not, contrary to your letter, mere availability issues to which the service-credit regime applied.

Our client was entitled to terminate for material breach and to withhold payment of the invoices pending resolution of its losses. Far from owing your client the sums claimed, our client has itself suffered substantial loss, presently estimated to exceed £640,000, including the cost of re-performing its FY2024 emissions assurance through a third party. Our client intends to advance a counterclaim for those sums.

Your client's damages claim is denied and is in any event subject to the limitation of liability in clause 9.4.

Our client is willing in principle to consider mediation once statements of case have been exchanged, but is not prepared to make any payment. We reserve our client's position fully.

Yours faithfully

Pemberton Rowe LLP